

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

CCMA, LLC, *Complainant*

v.

MAERSK A/S AND PORTS AMERICA CHESAPEAKE, LLC,
Respondents.

DOCKET NO. 22-01

Served: February 7, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER GRANTING MOTION TO AMEND COMPLAINT

Complainant CCMA, LLC (“CCMA”) initiated this proceeding by filing a complaint on December 27, 2021, alleging that Safmarine, Inc. (“Safmarine”) and Ports America Chesapeake, LLC (“PAC”) violated 46 U.S.C. § 41102(c) of the Shipping Act, in connection with demurrage assessed on Complainant’s containers, which were subsequently placed on a hold by the Customs and Border Protection (“CBP”). On January 27, 2022, Complainant requested, and was granted an extension of time until February 25, 2022, for Respondents to file their responsive pleadings, which were due on January 31, 2022. Complainant indicated at that time that it intended to file an amended complaint. On February 2, 2022, Complainant filed a motion seeking leave to file an amended complaint, along with the proposed amended complaint.

Responsive pleadings have not yet been received from Respondents. Complainant stated in its motion seeking an extension of time to file responsive pleadings that Respondent PAC had not received notice of the complaint. Complainant should ensure that the Secretary has the correct address to serve PAC with the Amended Complaint.

Complainant asserts that it “has learned additional information regarding the facts and circumstances surrounding the allegations in the Complaint [as a result of which it wishes] to amend its Complaint to add Maersk A/S as a Respondent in this action and dismiss Safmarine Inc. as a Respondent.” Motion at 1.

Commission Rule 66(a) provides, in pertinent part, that amendments “will be permitted or rejected, either in the discretion of the Commission or presiding officer. No amendment will be allowed that would broaden the issue, without opportunity to reply to such amended pleading and to prepare for the broadened issues.” 46 C.F.R. § 502.66(a).

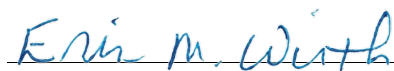
The rules do not provide criteria for evaluating whether to grant or deny a motion to amend a complaint, however, Commission Rule 12 provides that “for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.” 46 C.F.R. § 502.12. Under Federal Rule 15(a)(1)(B), “a party may amend its pleading once as a matter of course” within 21 days after service of a responsive pleading. F.R.C.P. 15(a)(1)(B). After that period, an amended pleading is permitted with opposing party’s written consent or leave of court which, should be freely given when justice so requires. F.R.C.P. 15(a)(2). “Denial of leave to amend therefore constitutes an abuse of discretion unless the court gives sufficient reason, such as futility of amendment, undue delay, bad faith, dilatory motive, undue prejudice, or repeated failure to cure deficiencies by previous amendments.” *Bancoult v. McNamara*, 214 F.R.D. 5, at *8 (D.D.C. 2003); *see also Foman v. Davis*, 371 U.S. 178, 182 (1962).

Respondents have yet to file their responsive pleadings. It follows, therefore, that because 21 days have not passed since the filing of responsive pleadings, Complainant is entitled to amend its complaint “once as a matter of course” under Federal Rule 15(a)(1)(B). Moreover, Complainant gave timely notice that it would move to amend its complaint after obtaining information pertinent to its complaint and none of the grounds to deny a motion to amend under the Federal Rules is present in this situation. Justice thus requires that Complainant be allowed to amend its complaint.

For the foregoing reasons, it is hereby

ORDERED that the motion to amend the complaint be **GRANTED**. The Secretary is requested to file the amended complaint attached to Complainant’s motion for leave to file an amended complaint, and serve the amended complaint and this order on Respondents Maersk A/S and Ports America Chesapeake. Respondents shall file their responses to the amended complaint as required and within the timeframe identified in Commission Rule 62(b). It is

FURTHER ORDERED that the caption of this proceeding be changed to replace Safmarine, Inc. with Maersk A/S, as a respondent.



Erin M. Wirth

Chief Administrative Law Judge